

M/s Silverton Pulp & Papers Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · WRIT - C No. 29265 of 2014 · **Writ dismissed by adopting companion order of even date.**

HEADNOTE

A challenge to a demand notice for additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed. The Division Bench adopted the order of even date in Writ-C No. 30898 of 2016. An earlier Division Bench had stayed the demand pending disposal.

FACTUAL SUMMARY

The petitioner, an industrial consumer, challenged a 2 April 2014 demand of Paschimanchal Vidyut Vitran Nigam Ltd. for additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. It cited similar writs, including M/s Supreme Ceramics Limited, in which interim protection had been granted. On 26 May 2014 a Division Bench connected the matter with W.P.(C) No. 51884 of 2009 and stayed the demand. On 21 March 2017 another Division Bench dismissed the writ, adopting the order of even date in Writ-C No. 30898 of 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security deposit

HOLDING

The writ petition seeking quashing of a demand notice for additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed. The Division Bench directed that the reasons be read from the order of even date in Writ-C No. 30898 of 2016. An earlier Division Bench had, on 26 May 2014, connected the petition with W.P.(C) No. 51884 of 2009 and restrained the licensee from demanding additional security until further orders. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd., Writ Petition No. 51844 of 2009			order dated 26.5.2014	Referred
Writ-C No. 30898 of 2016 (order of even date)			order dated 21.3.2017	Referred